

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.
Complainant

vs.

FLEXPORT INTERNATIONAL LLC
Respondent

**COMPLAINANT’S SIXTH MOTION
FOR CONFIDENTIAL TREATMENT**

Complainant Peloton Interactive, Inc. (“Peloton”), by and through its attorneys Holland & Knight LLP, hereby move pursuant to the Federal Maritime Commission’s (“FMC” or the “Commission”) May 13, 2024 Initial Order and 5(b) of the Federal Maritime Commission’s Rules of Practice and Procedure (the “Rules” or individually, “Rule”), 46 C.F.R. 502.5(b), for confidential treatment of Peloton’s Initial Brief in Support of its Claims Against Flexport International LLC (the “Brief”), Appendix, and Proposed Findings of Fact (“PFF”).

On December 13, 2024, Peloton and Flexport entered a Stipulation of Confidentiality (“Confidentiality Agreement”), which provides among other things, that “Confidential Material which is to be filed with the ALJ or Commission, or materials containing, reproducing, incorporating or otherwise disclosing Confidential Material shall be filed and labeled in accordance with 46 CFR §502.5.”

Confidentiality is necessary here because the Brief, Appendix, and PFF include documentation and/or deposition testimony designated by the parties as Confidential Material. The nature of this documentation and testimony is commercially sensitive as it contains direct recitations of confidential contract terms, the identity of and contractual terms with direct competitors, and personally identifiable information such as financial account information and personal contact information. In accordance with the Confidentiality Agreement, Peloton is seeking confidential treatment of confidential information contained in the Brief, Appendix, and PFF designated as Confidential Material by the parties. In accordance with the Presiding Officer's recommendation in the Initial Order, Peloton also submits a confidentiality matrix that outlines all confidential material for Peloton's Brief, Appendix, and PFF as Exhibit A. Pursuant to Rule 5(b), Peloton will file a confidential and public version of the Brief, Appendix, and PFF.

Meet and Confer Certification

On August 14, 2025, counsel for Peloton emailed counsel for Flexport to advise Peloton's intention to file a motion seeking confidential treatment of its Brief, Appendix, and PFF. Peloton's counsel requested Flexport's position on the proposed motion. Flexport counsel advised it would oppose any confidential designations that it deemed improper.

Conclusion

For the foregoing reasons, Peloton respectfully requests that the materials and exhibits designated as confidential in the Brief, Appendix, and PFF be kept confidential and not disclosed to the public at this time.

Respectfully Submitted,

Dated: August 14, 2025

HOLLAND AND KNIGHT LLP

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on August 14, 2025, the undersigned served the attached document on counsel at the following email addresses:

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/s/ Kristine Little